

Plaintiff contends that additional facts were to be presented at oral argument to support her position. However, the instant motion does not present any new facts for the court to consider. Plaintiff argues that Defendant's counsel's failure to appear was a "strategic", "voluntary", and "intentional" decision to cause default to be entered against his client. She then explains this was a "tactical" decision for the purpose of "obtaining evidentiary documents Plaintiff would file during the Request for Judgement". Here, while Plaintiff presents a theory, new facts or evidence are not offered in support. Similarly, Plaintiff does not assert that the grounds for reconsideration of the order is due to new law. Plaintiff only argues that the requirements under Code of Civil Procedure section 473 were misapplied. As such, the court lacks jurisdiction to grant Plaintiff's motion for reconsideration.

"A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time." (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212, internal citations omitted.) "Courts have construed section 1008 to require a party filing an application for reconsideration... to show diligence with a satisfactory explanation for not having presented the new or different information earlier." (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 839, internal citations omitted.)

Regardless of whether Plaintiff presented new evidence or legal facts, the instant motion must be denied because a satisfactory explanation for why they were not previously presented in opposition of the set aside motion is absent from the instant motion. Plaintiff argues that she was prevented from providing additional facts because she was unable to attend oral argument. However, Plaintiff admits that she failed to request oral argument due to her ignorance of local procedure. Pro per litigants are held to the same standards as attorneys. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984.) As such, pro per litigants are not entitled to special exemptions from procedural rules. (*Nuno v. California State University, Bakersfield* (2020) 47 Cal.App.5th 799, 812.) Also, the failure to participate in oral argument is not a ground for reconsideration. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500 [Order granting reconsideration under section 1008 was reversed where the moving party did not present any facts or authorities relating to the merits of the underlying motion that were not considered by the trial court when it issued its initial orders].)

As there are no new facts, circumstances, or law presented in the motion at bench, the court must deny the motion for reconsideration for lack of jurisdiction.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 24, 2026.
(Judge's initials) (Date)

(46)

Tentative Ruling

Re: **Edward Madec v. State Center Community College District**
Superior Court Case No. 25CECG05517

Hearing Date: August 25, 2026 (Dept. 403)

Motion: Demurrer and Motion to Strike

Tentative Ruling:

To sustain the demurrer to the first and second causes of action in the complaint, without leave to amend.

To deny the motion to strike, as moot.

Explanation:

Plaintiff Edward Madec ("Plaintiff") filed his Complaint against State Center Community College District ("Defendant") on November 25, 2025, raising causes of action for Breach of Contract and Breach of Implied Covenant of Good Faith and Fair Dealing.

Demurrer

Applicable Laws for Demurrers

In determining a demurrer, the court assumes the truth of the facts alleged in the complaint and the reasonable inferences that may be drawn from those facts. (*Miklosy v. Regents of Univ. of Cal.* (2008) 44 Cal.4th 876, 883.) The demurrer does not admit mere contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) On demurrer, the court must determine if the factual allegations of the complaint are adequate to state a cause of action under any legal theory. (*Barquis v. Merchants Collection Assn.* (1972) 7 Cal.3d 94, 103.)

On a demurrer, a court's function is limited to testing the legal sufficiency of the complaint. A demurrer is simply not the appropriate procedure for determining the truth of disputed facts. (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114.) It is error to sustain a demurrer where plaintiff "has stated a cause of action under any possible legal theory. In assessing the sufficiency of a demurrer, all material facts pleaded in the complaint and those which arise by reasonable implication are deemed true." (*Bush v. California Conservation Corps* (1982) 136 Cal.App.3d 194, 200.)

A plaintiff is not required to plead evidentiary facts supporting the allegation of ultimate fact; the pleading is adequate if it apprises defendant of the factual basis for plaintiff's claim. (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.) Stated another way, a plaintiff is required only to set forth the essential facts of his case with reasonable

precision and with particularity sufficient to acquaint a defendant with the nature, source, and extent of his cause of action. (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

Breach of Contract

Plaintiff fails to state facts sufficient to constitute a cause of action for breach of contract, and fails to allege whether the purported contract is written, is oral, or is implied by conduct. (Code Civ. Proc., §§ 430.10 subd. (e) and (g).)

To state a cause of action for breach of contract, the complaint must allege (1) the existence of a contract; (2) plaintiff's performance or excuse for nonperformance of the contract; (3) defendant's breach; and (4) resulting damage. (See *State Compensation Insurance Fund v. ReadyLink Healthcare, Inc.* (2020) 50 Cal.App.5th 422, 449.) The contract must be pled verbatim, be attached to the complaint, or be pled according to its legal effect. (See *Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199.) In order to plead the legal effect, the plaintiff must allege the substance of the relevant terms. (See *Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 993.)

Defendant argues that the Complaint fails to plead the existence of a contract. The Complaint merely alleges that there was an "employment agreement...including the Board Policies and Administrative Regulations[.]" (Compl., ¶ 12.) The employment agreement allegedly provides that Plaintiff would not be discipline[d] or dismissed except for cause. (*Ibid.*) Plaintiff was then terminated after alleged violations of "District, college, and other rules." (*Id.*, ¶ 13.)

The Complaint insufficiently pleads the existence of a contract and/or its essential terms. It is not enough to allege that an employment agreement exists. Here, the only term of the agreement alleged is that Plaintiff would not be disciplined or dismissed except for cause; however, important terms such as "disciplined," "dismissed," and "for cause" are not defined. These terms are relevant to plead the legal effect of the purported contract. Not only has the existence of the contract not been established, but the terms as pled do not sufficiently allege plaintiff's performance and defendant's breach, which are necessary elements to this cause of action. Further, Plaintiff has not alleged whether the purported contract is written, is oral, or is implied by conduct.

Plaintiff fails to state facts sufficient to constitute a cause of action for breach of contract. As the existence of an enforceable contract has not been established, the second cause of action for breach of implied covenant of good faith and fair dealing based on the purported contract also fails.

Tolling of Time Limitations

Plaintiff argues that the time to present his claim pursuant to the Government Claims Act and the statutory time to file his motion were tolled due to the administrative proceedings that were held.

Statute of Limitations

The statute of limitations for breach of oral contracts is two years, and four years for breach of written contracts. (See Code Civ. Proc., §§ 337, 339.) As discussed above, the Complaint does not sufficiently allege a breach of contract, but even if it did, the Complaint does not allege the “date of accrual” of his claims. Plaintiff alleges that he was terminated from employment on October 6, 2020; his pay and benefits were terminated on November 30, 2020; and his pay and benefits were reinstated March 31, 2022. (Compl., ¶¶ 13-14.) Presuming at least one of the dates of Plaintiff’s termination (i.e. the alleged “breach”) establishes the date of accrual, the date the Complaint was filed would fall outside the statute of limitations for a breach of contract action based on either date. As it appears on the face of the Complaint, the action was untimely filed.

Plaintiff’s opposition does not purport to correct this facial defect, and instead focuses on equitable tolling of the statute of limitations due to the pursuit of administrative proceedings. However, while equitable tolling may be allowed in some cases, it is not a blanket application. Plaintiff presents that tolling is available but has failed to argue why the facts of this particular case warrant equitable tolling of the statute of limitations.

Government Claims Act

“No suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented ... until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board[.]” (Gov. Code, § 945.4; see also Gov. Code, § 905.) A claim relating to a breach of contract must be presented within one year of accrual. (Gov. Code, § 911.2, subd. (a).) “[A] plaintiff must allege facts demonstrating or excusing compliance with the claim presentation requirement.” (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1243.) “Otherwise, his complaint is subject to a general demurrer for failure to state facts sufficient to constitute a cause of action.” (*Ibid.*)

Here, the Complaint alleges that “Plaintiff has complied with all applicable claims statutes.” (Compl., ¶ 18.) This is a conclusory statement, and the demurrer does not admit mere contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Defendant submits the “Claim Pursuant to California Government Claims Act”¹ sent from Plaintiff to Defendant on or about July 9, 2025 and received by Defendant on July 14, 2025. Again, while the Complaint does not allege the “date of accrual,” it does allege that Plaintiff was terminated from employment on October 6, 2020; his pay and benefits were terminated on November 30, 2020; and his pay and benefits were reinstated March 31, 2022. (Compl., ¶¶ 13-14.) Plaintiff’s opposition to the present motion does not provide any clarity on when Plaintiff believes his claim accrued. Regardless, the 2025 claim was presented beyond a year from any of these dates.

¹ Defendant’s Request for Judicial Notice may be granted to the extent that it demonstrates that such records exist. (*Steed v. Dept. of Consumer Affairs* (2012) 204 Cal.App.4th 112, 120-121.)

Defendant argues that the Complaint fails to allege the date of any claim presentation nor facts demonstrating its timeliness. The court agrees that these facts do not appear on the face of the Complaint, which supports sustaining the demurrer.

Plaintiff argues that his claim presentation was timely because the time for filing the government claim is tolled when he pursued administrative proceedings. Plaintiff only argues that it is “well established” that time consumed by administrative proceedings are excluded from the period within which a claim must be presented as a prerequisite to a suit. He cites to *Baillargeon v. Department of Water & Power* (1977) 69 Cal.App.3d 670, but fails to demonstrate that it extends to the present breach of contract claim. In *Baillargeon*, the plaintiff’s workers’ compensation case helped ascertain pertinent facts relevant to whether she could reasonably bring her civil action, which made tolling the time to file the civil action practically “necessary.”

Such necessity has not been claimed or demonstrated here. Plaintiff has not offered any other authority to support a finding that the time should be tolled for the length of time necessary to make the claim received by Defendant in July 2025 timely. Plaintiff has failed to demonstrate a cognizable basis for tolling the time to make his claims presentation, postponing accrual, or otherwise excusing timely presentation.

As the failure to timely present a government claim is a defect that cannot be resolved, the court intends to sustain the demurrer without leave to amend.

Claim Preclusion

Defendant acknowledges the applicability of *Busick v. Workmen’s Comp. Appeals Bd.* (1972) 7 Cal.3d 967, whereby a plaintiff is not necessarily precluded from bringing another proceeding to obtain a recovery which was not but is now available to him. Thus, the court will not spend time on this issue, as the demurrer need not be sustained on this basis.

Motion to Strike

In light of the fact that the court intends to sustain the demurrer to the entire Complaint, without leave to amend, the court will deny the motion to strike as moot.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 24, 2026.
(Judge's initials) (Date)